

JP MORGAN CHASE BANK v. MACLEAN

21CF13548

PLAINTIFF'S (THIRD) MOTION TO VACATE JUDGMENT

This is a limited jurisdiction collections case. Before the Court is a motion by plaintiff to vacate the clerk's entry of a default judgment herein. This is plaintiff's third attempt to secure the requested relief.

This action was commenced by way of complaint filed on 07/06/21. According to plaintiff, after several unsuccessful attempts at personal service, defendant was sub-served at home with the summons and complaint on 08/03/21.

On 09/20/21, plaintiff requested entry of default and a clerk's judgment based upon the amount in controversy, with no request for prejudgment interest or legal fees. That same day, the clerk entered default and a judgment thereon.

Nine months later, on 06/07/22, plaintiff filed its first motion to have that default judgment set aside. The first motion was denied on procedural grounds. The second motion was denied on the merits, without prejudice. Plaintiff was provided a roadmap of how to properly present this motion.

Now that plaintiff has provided this Court with a memorandum of points and authorities (CRC 3.1113), and the missing Exhibit A, this Court still does not understand plaintiff's desire to have the default judgment set aside so that a dismissal "without" prejudice can be entered. Plaintiff filed this lawsuit on 07/06/21 to recover an unpaid debt occurring within the preceding four years. At the time the lawsuit was filed, there was no bankruptcy petition. Although the filing of the petition three days *before* the clerk's judgment was entered might arguably have violated the automatic stay, it is of no consequence here. Despite counsel's apparent attempt to mislead this Court, this Court has its own PACER access and can see that (1) the debt lying at the heart of this pending lawsuit was scheduled by defendant (see ¶ 4.4-4.5) and subsequently discharged (see Order entered 12/20/21).

The motion to vacate the judgment entered 09/20/21 is GRANTED. The case is dismissed *with* prejudice.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

WELLS FARGO BANK v. SCHULTZ

21CF13622

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is a limited jurisdiction collections case. Before the Court is plaintiff's statutory motion for judgment on the pleadings directed at *both* the Complaint filed 09/28/21 and the Answer filed 01/18/22. The motion includes a reasonable attempt – under the circumstances – to satisfy the meet and confer requirement set forth in CCP §439.

A plaintiff moving for judgment on the pleadings must demonstrate that (1) the complaint states facts sufficient to constitute a viable cause of action against the defendant and (2) the answer does not state facts sufficient to constitute a defense to that cause of action. (CCP §438(c); see *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735; *Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321.) The grounds for the motion must appear on face of pleadings (the complaint and the answer), or from facts judicially noticeable. (CCP §438(d); *Tung v. Chicago Title Co.* (2021) 63 Cal.App.5th 734, 758-759; *Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 186-187.) A court passing on the legal sufficiency of a pleading may also go outside the pleadings for the limited purpose of considering a party's indisputable sworn discovery responses so long as the hearing does not cross the line into an incomplete evidentiary hearing. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 716; *Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.)

Reference is first made to the operative complaint. Plaintiff alleges two causes of action: breach of written contract; and common counts. Plaintiff attached a copy of the written contract to the complaint. Within the second cause of action for common counts, there are three separate counts: open book, account stated and money had. The complaint does not attach or incorporate any papers demonstrating acceptance of the card, use of the card, billing statements, or notices of default. Although the complaint shows an indebtedness, it does not include *facts* connecting that debt specifically to plaintiff. (See *Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460; *Kawasho Internat., U.S.A. Inc. v. Lakewood Pipe Service, Inc.* (1983) 152 Cal.App.3d 785, 793; *Gleason v. Klamer* (1980) 103 Cal.App.3d 782, 786; *H. Russell Taylor's Fire Prevention Service, Inc. v. Coca Cola Bottling Corp.* (1979) 99 Cal.App.3d 711, 726.) Moreover, where the party seeking money has a contractual obligation that is still executory, he cannot plead a cause of action for money had (*Ferrero v. Citizens of National Trust and Savings Bank of Los Angeles* (1955) 44 Cal.2d 401, 409), and there is no averment that the agreement was rescinded or otherwise no longer executory.